



POLICE DEPARTMENT

September 4, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202004061 (Incident Date: June 4, 2020) regarding Police Officer Joseph Mesaris, Tax No. 961949 (DADS No. 2022-25584), and Police Officer John Kopp, Tax No. 961867 (DADS No. 2022-25585)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202004061, pertaining to Police Officers Joseph Mesaris and John Kopp. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said Officers would be detrimental to the Police Department's disciplinary process.

In this matter, the CCRB seeks to serve Charges and Specifications against Police Officer Mesaris and Police Officer Kopp each for one count of New York Penal Law § 110/120.00, Attempted Assault in the Third Degree. After reviewing the evidence and the totality of the circumstances, the Police Commissioner finds that Police Officer Mesaris and Police Officer Kopp did not use a choked hold, and their actions were within guidelines. More importantly, the Police Commissioner finds their actions did not rise to the level of criminality. During Police Officer Mesaris's eight (8) year career he has no formal disciplinary history and no prior substantiated CCRB allegation. During Police Officer Kopp's eight (8) year career he has no formal disciplinary history and no prior substantiated CCRB allegation.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Police Officer Mesaris and Police Officer Kopp for the allegations of Attempted Assault in the Third Degree.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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Website: <http://nyc.gov/nypd>



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



September 10, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Joseph Mesaris and Police Officer John Kopp
Disciplinary Case Nos.: 2022-25584 and 2022-25585

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated September 4, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you “determined that to pursue Charges and Specifications against said Officers would be detrimental to the Police Department’s disciplinary process” and you intend to retain jurisdiction over this matter and “impose no disciplinary action against Police Officer Mesaris and Police Officer Kopp for the allegations of Attempted Assault in the Third Degree.” Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

While CCRB cannot deny that you are permitted to retain jurisdiction in matters such as this one with members of service who have a lack of a disciplinary history, CCRB requests that you allow these Charges and Specifications to be served on Police Officer Mesaris and Police Officer Kopp and permit CCRB to prosecute these members of service. We disagree with your finding that Police Officer Mesaris and Police Officer Kopp “did not use a choked hold and their actions were within guidelines” and that Police Officer Mesaris’ and Police Officer Kopp’s misconduct and actions do “not rise to the level of criminality.” The Charges and Specifications against Police Officer Mesaris and Police Officer Kopp were filed using the crime exception and comport with the statutory requirements for Attempted Assault in the Third Degree. It is undisputed that Police Officer Mesaris and Police Officer Kopp restrained the complainant and pushed him against the front desk inside of the 42nd Precinct Stationhouse and that caused the complainant’s neck to make contact with the edge of the desk. This misconduct is not only captured on body-worn camera (BWC) and stationhouse footage, but Police Officer Mesaris’ involvement is further corroborated by his statement to CCRB, where he affirmed that he was the first officer to use force against the complainant. While neither Police Officer Mesaris nor Police Officer Kopp could recall if the

complainant's neck made contact with the edge of the front desk, both officers acknowledged that they saw as much in the BWC video when the footage was played for them during their CCRB interviews.

After reviewing the evidence and circumstances of this incident, CCRB determined that Police Officer Mesaris' and Police Officer Kopp's actions were not within guidelines nor justified and this misconduct was substantiated by the Board. By not taking disciplinary action, Police Officer Mesaris and Police Officer Kopp are not being held accountable for this substantiated misconduct.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, CCRB disagrees with your intention of retaining jurisdiction and imposing no disciplinary action for the misconduct committed by Police Officer Mesaris and Police Officer Kopp. CCRB requests that you allow our agency to pursue the prosecution of these Charges and Specifications against Police Officer Mesaris and Police Officer Kopp.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

September 11, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

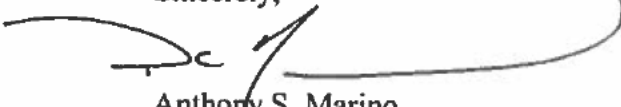
Re: CCRB Case No. 202004061 (Incident Date: June 4, 2020) regarding Police Officer Joseph Mesaris, Tax No. 961949 (DADS No. 2022-25584), and Police Officer John Kopp, Tax No. 961867 (DADS No. 2022-25585)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated September 10, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving regarding Police Officers Joseph Mesaris and John Kopp. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of said officers for the reasons expressed in my September 4, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed against Police Officer Mesaris and Police Officer Kopp for the allegations of Attempted Assault in the Third Degree.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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